IN THE NATIONAL COMPANY LAW TRIBUNAL : NEW DELHI

COURT-III

CAA-14/ND/2018

In the matter of :
Abhilasa Dealmark (P) Ltd **.....PETITIONER**

SECTION
Under Section 230-232

Order delivered on 14.9.2018

Coram :
Dr. Deepti Mukesh,
Hon'ble Member (Judicial)
Dr. V.K. Subburaj
Hon'ble Member (Technical)

For the Petitioner /Op. Creditor : Mr. Manoj Kumar Garg, Advocate
For the Respondent/Corporate Debtor :
For the Intervener : Ms. Kusum Yadav, Co. Prosecutor for ROC
Mr. Puneet Rai, St. Counsel for Income tax Deptt with Mr. Manas Tripathi, Advocate

ORDER

This is an Application filed vide diary No.5900 dated 19.6.2018 by the Regional Director seeking to set aside the Order passed by this Tribunal on 31.5.2018 wherein right to file reply by the RD was declared as closed if the same was not filed within 30 days from the date it was done. A detailed affidavit with respect to the difficulties faced in filing the reply has been filed wherein the reasons stated are that the applicant was extensively examining the Balance Sheet of the petitioner and instructions were being prepared for

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filing of the said reply on the date of order and was not present because of the fact the Authorized Representative was appearing in other Court and in the meantime, the matter was adjourned. Considering the said ground and also in the interest of justice, we hereby allow the prayer and set aside the order dated 31.5.2018. It is also seen that reply is annexed in the file and as such, the same is disposed off in terms of the above order.

List on 25.9.2018

-Sd-

(DR. V.K. SUBBURAJ)
MEMBER (TECHNICAL)

-Sd-

(DR. DEEPTI MUKESH)
MEMBER (JUDICIAL)

Surjit
14.9.2018